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File No.: EXP202302494
RESOLUTION OF RECOURSE FOR RECONSIDERATION
Examined the recourse for reconsideration filed by CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 13, 2023, and based on the following

FACTS
FIRST: On November 13, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202302494, by virtue of which the following was imposed on CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U.:
FIRST: TO IMPOSE on CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U., with NIF A08980153, for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 200,000 euros (TWO HUNDRED THOUSAND euros)
SECOND: TO NOTIFY this resolution to CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U.
THIRD: TO ORDER CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U., with NIF A08980153, that pursuant to Article 58.2.d) of the GDPR, within a period of 6 months, to carry out the necessary actions so that the processing of personal data in credit information systems complies with the provisions of the GDPR and to certify that it has proceeded with its adjustment.
SECOND: This resolution, which was notified to the appellant on November 16, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.
THIRD: As proven facts of the aforementioned sanctioning procedure, PS/00178/2023, the following was recorded:
FIRST: In the judgment issued by the Court of First Instance No. 3 of Badalona, dated March 29, 2022, it is established that, in light of the interpretative approaches set forth by STS 149/2020 of March 4 (FD 4), in relation to credit cards or credit operations of the same nature or characteristics as the one in dispute, to determine the reference to be used as the "normal interest of money" for comparison with the questioned interest in the litigation and to assess whether it is usurious, the average interest rate at the time of the contract must be used, corresponding to the category to which the questioned credit operation belongs—here, according to the average values provided by the Bank of Spain, for deferred payment cards for the year 2017, the index of the remuneration interest rate for their use was around 20.80%; so that if, in this case, the agreed APR for the credit operation we are judging (materialized in November 2017) was 25.33%, it must be concluded that we are facing an interest significantly higher than the normal interest of money in this operation and, therefore, it must be considered usurious, with the consequent declaration of nullity of the disputed contract in the general condition that establishes said remuneration interest.
SECOND: The claimant has been included in the BADEXCUG solvency file by the defendant since November 13, 2022, for an amount of 204.40 euros.
THIRD: The claimant has requested the challenge of the settlement before the Court of First Instance No. 50 BIS of Barcelona, on November 23, 2022.
FOURTH: On September 1, 2023, a telematic submission was made in the execution procedure of judicial titles 1461/2022 -L (which stems from ordinary trial 1475/2021) of the Court of First Instance No. 3 of Badalona, of the settlement agreement reached between the interested party, Ms. A.A.A., and CaixaBank Payments & Consumer, agreeing to conclude the present executive procedure and requesting this Court to judicially homologate the present transaction, consisting of the waiver by CAIXABANK PAYMENTS of the collection of the liquid, due, and enforceable debt that Ms. A.A.A. currently holds with the entity, for an amount of 309.10 euros.
THIRD: The appellant submitted on December 13, 2023, to this Spanish Agency for Data Protection, a

recourse for reconsideration, fundamentally basing it on the following assertions:
"The Judgment of the Supreme Court of November 12, 2020, cited by the AEPD Resolution, is not applicable to the present case, because the debt is not subject to controversy.
The interested party has not questioned, in judicial proceedings, the existence of the debt.
We are not facing a claim filed judicially by the debtor referring to the 'certainty' of the debt, that is, its existence and amount.
Thus, the Judgment of the Court of First Instance No. 3 of Badalona, dated March 29, 2022, declares the nullity, for usury, of the Visa & Go credit card contract dated November 30, 2017.
The consequence of said nullity is provided for in Article 3 of the Law of July 23, 1908, on Usury, which establishes:
"Once the nullity of a contract is declared in accordance with this law, the borrower shall be obliged to return only the sum received; and if they have paid part of it and the overdue interest, the lender shall return to the borrower what, taking into account the total received, exceeds the capital lent."

Thus, based on said Judgment, Ms. A.A.A. was obliged to pay CaixaBank Payments & Consumer only the total capital of the granted credit that she has utilized (the only thing she will not pay are interests, penalties, commissions, etc.), given that, as established by the Supreme Court, the consequence of the usurious nature of a loan, due to the interest rate, is that the borrower will be obliged to pay only the amount received, but not the interests and expenses. Therefore, the claimant logically had to pay CaixaBank Payments & Consumer all the capital of the granted credit that she has utilized. Thus, the interested party has never disputed the veracity of the debt.
The requirement that the debt be "certain" responds to the principle of data quality set forth in Article 4.1 of the LOPDGDD, which states that "In accordance with Article 5.1.d) of Regulation (EU) 2016/679, the data shall be accurate and, where necessary, kept up to date." The creditor or anyone acting on their behalf or interest may therefore provide personal data related to the non-fulfillment of monetary, financial, or credit obligations to common credit information systems, provided that the information recorded in such files respects the principle of truthfulness and accuracy of the aforementioned Article 4.1 of the LOPDGDD.
The existence of a judicial procedure between the affected party and CaixaBank Payments & Consumer is not sufficient to determine the non-concurrence of the requirement of a certain debt required in Article 20.1 b) of the LOPDGDD; rather, such judicial procedure must have been initiated by the interested party to resolve the certainty of the debt, which, evidently, has not taken place.
It is the claimant herself who acknowledges the existence of the debt, which allows us to sustain not only the certainty of the included data but also its relevance.
Thus, the interested party herself acknowledges the existence of the debt in the aforementioned judicial transaction (approved by the Court), in which CaixaBank Payments & Consumer waives the collection of the amount of €309.10 (total capital utilized and not amortized of the granted credit), which Ms. A.A.A. therefore has pending payment, which is a certain, due, enforceable debt that has remained unpaid.
The inclusion of the interested party's personal data in credit information systems is covered by the presumption of legality contemplated in Article 20 of the LOPDGDD, as the data refers to a certain, due, and enforceable debt that has remained unpaid.
We are faced with a presumption "iuris tantum": Prevalence of the legitimate interest of CaixaBank Payments & Consumer in the case concerning the processing of data in common credit information systems. Therefore, we are dealing with the processing of personal data based on legitimacy.
The fact that there is a dispute regarding the amount claimed (challenge of the settlement) does not imply a violation of data protection regulations, since, in such a case, there is indeed a debt.
Finally, CaixaBank Payments & Consumer must reiterate that there is a "patent or manifest error" (immediately verifiable in an incontrovertible manner) in the statements made in the Resolution

contested here (as already stated in the Proposal of C/ Jorge Juan, 6).

Resolution) regarding the claimant, who, in addition to approaching the Court of First Instance No. 3 of Badalona (which issued a judgment dated 29/03/2022 and the Order dated September 19, 2023, homologating the judicial transaction), has also appealed/challenged the settlement (on November 23, 2022) before the Court of First Instance No. 50 BIS of Barcelona, since no appeal for reconsideration has been filed, nor a direct review, nor an appeal (and, evidently, no extraordinary appeal for procedural infringement, nor cassation, nor complaint has been filed) before the aforementioned judicial body on the indicated date (knowing, moreover, that it is exclusively competent for the province of Barcelona regarding matters related to general conditions included in financing contracts with real estate guarantees where the borrower is a natural person; which, evidently, is not the case here).
All that pertains to the aforementioned challenge, which is recorded in the appealed Resolution ("The claimant has requested the challenge of the settlement before the Court of First Instance No. 50 BIS of Barcelona, on November 23, 2022."), is incorrect for the following reasons:
- The only existing procedure is the execution of judicial titles 1461/2022 -L (which arises from Ordinary Procedure 1475/2021) of the Court of First Instance No. 3 of Badalona.
- There is no ongoing procedure (nor has there ever been) between the claimant and CaixaBank Payments & Consumer, before the Court of First Instance No. 50 BIS of Barcelona, since, logically, there is no financing contract with real estate guarantee (mortgage) signed between both parties; and the aforementioned court will not issue any judgment - nor any judicial resolution regarding the unpaid debt of the interested party.
- The plaintiff (here, the claimant) submitted a document to the Court of First Instance No. 3 of Badalona (although in the heading due to a clerical error it stated Court of First Instance No. 50 BIS of Barcelona), dated 23/11/2022, simply opposing the settlement initially presented by CaixaBank Payments & Consumer and requesting that it be required again to provide a new settlement.
Based on all the above, it follows that CaixaBank Payments & Consumer complied with the requirements established in the current regulations on personal data protection for their inclusion in common credit information systems, as there exists, according to the documentary evidence in the file, a certain, due, and enforceable debt that had been previously requested for payment, which is why it is understood that it respected the principle of data quality.
Thus, the actions of CaixaBank Payments & Consumer, as the data controller, have been in accordance with the regulations on personal data protection."

LEGAL GROUNDS
I
Competence
The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).
II
Response to the allegations presented
In relation to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been

analyzed and dismissed in the Legal Grounds II, III, and IV of the appealed Resolution, as transcribed below:
“II
Regarding the lawfulness of the processing of personal data, Article 6.1 of the GDPR establishes the following:
“1. Processing shall be lawful only if at least one of the following conditions is met:
a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
b) processing is necessary for the performance of a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering into a contract;
c) processing is necessary for compliance with a legal obligation to which the controller is subject;
d) processing is necessary to protect the vital interests of the data subject or of another natural person;
e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.”

The provisions in letter f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions.
2. Member States may maintain or introduce more specific provisions in order to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, letters c) and e), by more precisely establishing specific processing requirements and other measures that ensure lawful and fair processing, including other specific processing situations pursuant to Chapter IX.
3. The basis for the processing indicated in paragraph 1, letters c) and e), must be established by:
a) Union law, or
b) the law of the Member States applicable to the data controller.
The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, letter e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.
Such legal basis may contain specific provisions to adapt the application of the rules of this Regulation, including: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific processing situations pursuant to Chapter IX.
Union law or the law of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued.
4. When the processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union law or the law of the Member States that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:
a) any link between the purposes for which the personal data were collected and the purposes of the intended further processing;
b) the context in which the personal data were collected, in particular regarding the relationship

between the data subjects and the data controller;
c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;
d) the possible consequences for the data subjects of the intended further processing;

e) the existence of adequate safeguards, which may include encryption or pseudonymization."
In relation to credit information systems, we must refer to Article 20.1 of the LOPDGDD, highlighting its paragraph b), which establishes the following:
"1. Unless proven otherwise, the processing of personal data related to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:
a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.
The entity maintaining the credit information system with data related to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.
d) That the data is only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.
e) That the data related to a specific debtor can only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or the affected party has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts.
When the right to limit the processing of the data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system shall inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.
f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation made, the person who consulted the system shall inform the affected party of the result of that consultation."

III
In the present case, the claimant highlights the improper inclusion of their personal data in financial solvency files, as the debt is not yet certain since it is being contested in an ongoing judicial process.
The responding entity claims that based on the Judgment of the Court of First Instance number 3 of Badalona, dated March 29, 2022, it carried out the settlement of the debt against the claimant, and since payment was not made, a prior payment request was issued on November 5, 2022, followed by

the inclusion of their personal data in the financial solvency file BADEXCUG on November 13, 2022. Furthermore, the responding entity points out a material error on the part of this Agency, as it considers that the claimant did not appear before the Court of First Instance No. 50 BIS of Barcelona, but rather before the Court of First Instance number 3 of Badalona.
In this regard, it should be noted that from the documentation provided by the claimant, it has been learned that in addition to appearing before the Court of First Instance number 3 of Badalona, which issued a judgment dated March 29, 2022, the claimant has also contested the settlement of the debt in question, as required by the responding entity.
Despite such contestation presented on November 23, 2022, the financial entity did not proceed to the preventive cancellation of the data reported to the credit information systems until January 12, 2023. Therefore, from November 23, 2022, the date of the contestation of the settlement, until January 12, 2023, the date on which the cancellation of the data in the credit information system became effective, the inclusion in solvency files of the data of the claimant at the request of the responding entity lacked a basis for legitimacy.
Regarding this issue, on July 4, 2023, the responding entity states that "it is not a prior requirement for inclusion in a financial solvency system that the prior existence of a certain, enforceable, and unpaid debt be declared judicially."
Additionally, on September 6, 2023, this Agency received information about the agreement reached between the parties on September 1, 2023, where they agree to conclude the executive procedure and request the Court to judicially homologate the transaction, consisting of the waiver by CAIXABANK PAYMENTS of the collection of the liquid, due, and enforceable debt that Ms. A.A.A. currently holds with the entity, amounting to 309.10 euros for the capital drawn and not amortized with credit card no. ***NUMBER.1, in such a way that the responding entity understands that with this agreement, the interested party herself acknowledges the existence of the debt in the aforementioned judicial transaction, in which CaixaBank Payments & Consumer waives the collection of the amount of €309.10.

In response to such allegation, it should be noted that the Judgment of the Supreme Court, dated November 12, 2020, Appeal 4739/2019, in its legal foundation IV states the following:
"Doctrine on the issue that presents cassational interest.
The admission order issued in this appeal on November 15, 2019 established that the issue raised in the appeal that presented objective cassational interest for the formation of jurisprudence consisted of 'determining whether the concept of certain, due, enforceable debt that has remained unpaid includes the total amount of the debt claimed through administrative or judicial means, or whether, for the purposes of possible inclusion in the ASNEF registry, that amount which has not been claimed can be deducted, in this case the principal of the debt and the remunerative interests, since only those amounts derived from accessory clauses of the contract have been claimed.'
Well, to respond to the aforementioned question, we must clarify what the true purpose is behind the inclusion of data in the so-called 'delinquent registries' and also what requirements must be met for such inclusion to be considered legitimate.
In this regard, the First Chamber of this Supreme Court - in its rulings SSTS 463/2019, of September 11; 174/2018, of March 23; 68/2016, of February 16; 740/2015, of December 22; and 176/2013, of March 6, among others - has established a doctrine that we fully share and that can be summarized as follows:
- The data included in these delinquent registries must be true and accurate; however, mere compliance with these requirements is not sufficient to meet the demands of the principle of data quality in this type of registries. There are data that can be true and accurate without being pertinent, as they are not determinative for assessing the economic solvency of the interested parties.
- If the debt is subject to controversy because the data holder legitimately believes that they do not

owe what is being claimed and the matter is subject to judicial or arbitral decision, the lack of payment is not indicative of the affected party's insolvency. The debt may ultimately be recognized, in whole or in part, by the judgment or arbitral award and therefore may be considered as a true data. However, it was not a pertinent and proportionate data for the purpose of the automated file, because its purpose is not merely to record debts, but to evaluate the asset solvency of the affected parties. Therefore, only the inclusion in these files of those debtors who cannot or do not want, without justification, to pay their debts is pertinent, but not of those who are legitimately disputing with the creditor the existence or amount of the debt.

- When it comes to files related to the fulfillment of monetary obligations, the debt must also be due and enforceable, certain, that is, unequivocal, undoubted, and prior payment demand is also necessary. For this reason, it is not permissible to include personal data in these registries due to uncertain, doubtful, non-peaceful, or litigated debts.

- The inclusion in the records of debtors cannot be used by large companies to seek to collect amounts they deem appropriate, relying on the fear of personal discredit of the affected party, the detriment to their professional prestige, and the denial of access to the credit system that appearing in a debtor file entails, thus avoiding the costs that would come with initiating the corresponding judicial procedure, which often exceeds the amount of the debts they claim. Therefore, the inclusion in the debtor registry when the client has legitimately questioned the existence or amount of the debt, whether in judicial or arbitration proceedings, constitutes illegitimate pressure.

Consequently, in light of the aforementioned doctrine, we must respond to the question raised by the Admission Section in the following terms:

Given the purpose of such registries—which is not to confirm the non-payment of debts, but to assess the debtor's financial solvency— for the inclusion of the debtor's data in a debtor registry to be considered legitimate, it is not enough for the amount of the unpaid debt to be accurate and truthful; it is also necessary that the inclusion in the registry is pertinent. It will not be pertinent when the debtor has legitimately questioned, in administrative, judicial, or arbitration proceedings, the existence or amount of the debt.

Therefore, we must understand that, although a prior judicial declaration is certainly not required for a debt to be included in a credit information system, it is necessary that the debt is not uncertain, doubtful, non-peaceful, or subject to litigation, which is why preventive removal should have been carried out, as is being claimed in this case.

On the other hand, it is indicated that the amount of the sanction is disproportionate; in this regard, it should be noted that the proportionality of the imposed sanction is justified in the VI foundation of this resolution, which takes into account all the concurrent circumstances for the sanction, just as the responsibility of the respondent has been motivated in the facts constituting the infringement.

Thus, it is evident from the proven facts of this procedure the serious lack of diligence of the respondent in maintaining the claimant's data registered in the credit information system despite the existence of an open judicial procedure affecting the amount of the debt. The inclusion or maintenance of the debt in credit information systems, when the affected party has legitimately questioned the existence or amount of the debt, whether in judicial or arbitration proceedings, affects the very purpose of the common file, which is none other than to facilitate information about the debtor's solvency. The mere non-payment of the debt when it is disputed is not indicative of insolvency, as the Supreme Court stated in its Judgment of November 12, 2020, Appeal 4739/2019, only the inclusion in these files of those debtors who cannot or do not want, in an unjustified manner, to pay their debts is pertinent, but not of those who are legitimately disputing with the creditor the existence or amount of the debt.

Therefore, diligence must be heightened in these cases to ensure that personal data regarding debts subject to litigation are not included or remain in common credit information systems. Such inclusion or permanence constitutes pressure.

illegitimate that the debtor should not bear when they justifiably dispute the veracity of the debt or its amount.
The infringement attributed in this case may be sanctioned with a fine of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, as dictated by Article 83.5 of the GDPR.
Given these circumstances, it follows that the amount set as a sanction against the claimed party is not disproportionate.
IV
In light of the above, it should be noted that the violation of data protection regulations occurs when the claimed party maintained the claimant's data in the credit information system from the challenge of the settlement until January 12, 2023, the date on which the cancellation becomes effective; therefore, during this period, there has been processing without a legitimate basis for the claimant's personal data.
The Opinion 757/2017 of the Council of State, issued in the file relating to the draft Organic Law on the Protection of Personal Data, states regarding the legality of a balancing of legitimate interest made in a regulatory text the following:
"Without prejudice to what has just been observed, given the undeniable convenience of ensuring the maximum degree of legal security possible by providing operators with certain guidelines in their actions, without prejudice to respecting the direct applicability of the European Regulation and, in any case, with the aim of ensuring its useful effect, the Council of State wishes to point out, as an alternative solution, the possibility of introducing by legislative means, in specific cases, simple iuris tantum presumptions favorable to the prevalence of the legitimate interest of the data controller when certain requirements or conditions are met.
This solution could be in line with the flexibility in the balancing of interests and the principle of proactive responsibility of the data controller that, as indicated, is pursued by the new community regulation. Likewise, the provision of simple presumptions unless proven otherwise would fit within the analyzed jurisprudence, which prohibits establishing in a national norm the result of the aforementioned balancing "definitively (...), without allowing for a different outcome," an obstacle that the alternative solution proposed here would, in principle, allow to avoid."
Following this provision, the LOPDGDD introduces a "iuris tantum" presumption of the prevalence of the legitimate interest of the data controller in certain specific cases, including the one related to the processing of data in credit information systems. Therefore, when the guarantees provided in Article 20 of the LOPDGDD are observed, the processing may be presumed lawful under Article 6.1.f) of the GDPR, without prejudice to the fact that legitimacy must be assessed on a case-by-case basis.

without prejudice to the fact that the responsible party may carry out the legally required balancing when the aforementioned guarantees are not met, as clarified in the preamble of the law which states:
“In Title IV, ‘Provisions applicable to specific treatments’ are included, incorporating a series of cases that should in no case be considered exhaustive of all lawful treatments. Among them, it is important to note, first of all, those for which the legislator establishes a ‘iuris tantum’ presumption of the prevalence of the legitimate interest of the responsible party when carried out under a series of requirements, which does not exclude the lawfulness of such treatments when the conditions set forth in the text are not strictly met; however, in this case, the responsible party must carry out the legally required balancing, as the prevalence of their legitimate interest is not presumed.”

Among the aforementioned guarantees, Article 20 of the LOPDGG includes the one that states that "the data refers to certain, due, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties" (art. 20.1.b) RGPD).

And as has been stated, in this case, the amount of the debt was disputed, so the presumption of lawfulness cannot be applied, and the responding party must carry out its own balancing as the legally required balancing does not apply. However, in this case, there is no record that the responding party has carried out such balancing and consequently that their legitimate interests prevail over the interests, rights, and freedoms of the claiming party.

Therefore, in accordance with the available evidence, it is considered that the described facts constitute a violation of Article 6.1 of the RGPD, since the inclusion of personal data in credit information systems due to a debt disputed by the claiming party, which is pending judicial resolution, is not covered by the presumption of lawfulness provided for in Article 20 of the LOPDGDD, which implies a processing of personal data without a basis for legitimacy, as there is no record that the responding party has carried out the necessary balancing to determine the prevalence of their legitimate interest over the interests, rights, and freedoms of the claiming party, as this processing is not covered by the presumption of lawfulness contemplated in Article 20 of the LOPDGDD since the debt subject to inclusion in the solvency files was still not certain as it was in an ongoing judicial process."

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Considering the cited provisions and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U. against the resolution of this Spanish Agency for Data Protection issued on November 13, 2023, in the file EXP202302494.

SECOND: TO NOTIFY this resolution to CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [https://sedeagpd.gob.es/sede-electronica-web/], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

180-21112023
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